

Saiyad Ali Akhtar v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 16 May 2019 · WRIT - C No. - 16377 of 2019 · **Writ disposed; four equal monthly instalments directed; coercive action stayed if paid on time; penalty left to appeal.**

HEADNOTE

Electricity Supply Code, 2005 — cl. 6.4 — payment of electricity dues in instalments. Where the consumer does not dispute the demand and the licensee has no objection under cl. 6.4, the High Court may dispose of the writ by fixing equal monthly instalments, restraining coercive measures so long as instalments are paid on time, leaving any penalty to an appeal before the appropriate authority, and restoring the licensee's liberty to proceed in accordance with law on default.

FACTUAL SUMMARY

Saiyad Ali Akhtar approached the Allahabad High Court against a departmental demand of electricity dues. On 13 May 2019 the matter was listed as fresh and he was directed to correct the array of respondents and serve respondent no. 3. At the hearing on 16 May 2019 he did not dispute the amount demanded and offered to pay it in easy instalments. Counsel for the contesting respondent, relying on clause 6.4 of the Electricity Supply Code, 2005, had no objection to accepting the dues in instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.4

instalment facility for undisputed electricity dues

HOLDING

Where the consumer does not dispute the electricity dues and the licensee has no objection under clause 6.4 of the Electricity Supply Code, 2005 to payment in instalments, the writ may be disposed of by fixing four equal monthly instalments, restraining coercive measures so long as each instalment is paid on time, and leaving any penalty to an appeal before the appropriate authority. Failure to deposit any instalment within time leaves the licensee free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Electricity Supply Code, 2005 — cl. 6.4 — payment of electricity dues in instalments. Where the consumer does not dispute the demand and the licensee has no objection under cl.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LIABILITY FOR AND QUANTUM OF ANY PENALTY ON THE ELECTRICITY DUES

Left open to an appeal before the appropriate authority; the Court did not adjudicate penalty. ¶ 1